

Anti-Social Behaviour Policy

Document Reference: DC-POL-005

Document Ref:	DC-POL-005
Version:	v1.8
Effective Date:	01 April 2024
Review Date:	01 April 2025
Approved By:	Head of Housing Operations
Department:	Tenancy Services / Community Safety

1. Purpose and Scope

DataCompany Housing Management is committed to maintaining safe, peaceful and respectful communities in all properties under its management. This policy sets out how DataCompany defines anti-social behaviour (ASB), how complaints are investigated and what actions may be taken against tenants found to have engaged in ASB. It applies to all DataCompany tenants, household members and visitors.

2. Definition of Anti-Social Behaviour

Anti-social behaviour is defined as any action or inaction by a tenant, member of their household or visitor that causes or is likely to cause harassment, alarm, distress, nuisance or annoyance to any person in the locality of the property. Examples include, but are not limited to:

- Persistent excessive noise, including loud music, shouting or use of power tools at unreasonable hours.
- Verbal or physical harassment, intimidation or threats directed at neighbours, DataCompany staff or contractors.
- Racial, ethnic, religious or gender-based harassment or hate conduct.
- Drug use, drug dealing or any other illegal activity within or around the property.
- Vandalism of communal areas, shared facilities or neighbouring properties.
- Accumulation of waste, rubbish or vermin-attracting materials on or around the property.
- Aggressive behaviour involving animals, including allowing dogs to intimidate neighbours.
- Unauthorised outdoor fires, burning of waste or materials that produce excessive smoke.
- Persistent parking in unauthorised areas causing obstruction or access issues.

3. Reporting Anti-Social Behaviour

Any tenant or person affected by ASB at a DataCompany property may report it to DataCompany. All reports are treated seriously and in confidence. DataCompany will not reveal the identity of a complainant to the alleged perpetrator without consent, unless required to do so by law.

Reporting Channel	Contact	Hours
Tenant Portal (secure form)	portal.datacompany.co.zw	24/7
Telephone	+263 4 700 100	Mon-Fri 08:00-17:00
Emergency Line (immediate risk)	+263 4 700 199	24/7

Email	asb@datacompany.co.zw	Responded within 2 working days
In Writing	DataCompany Offices, Harare	Mon-Fri 08:00-16:30

4. Investigation Process

Stage	Action	Timeframe
Receipt	Complaint logged; reference number issued to complainant	Same day
Initial Assessment	ASB Officer reviews report; priority level assigned	Within 2 working days
Contact with Alleged Perpetrator	Written notice that a complaint has been received (no complainant details shared)	Within 5 working days
Investigation	Evidence gathered: witness statements, CCTV (where available), noise monitoring if applicable	Up to 20 working days
Outcome	Decision communicated in writing to all parties	Within 25 working days

5. Actions and Sanctions

DataCompany operates a graduated response to ASB, taking into account the severity, frequency and impact of the behaviour:

- Stage 1 - Warning Letter: A formal written warning is issued outlining the complaint and required change in behaviour. The warning is held on the tenancy file for 12 months.
- Stage 2 - Formal Hearing: Where behaviour persists after a Stage 1 warning, the tenant is invited to a formal meeting with the ASB Officer and Housing Manager.
- Stage 3 - Tenancy Enforcement Notice: A legal notice requiring cessation of specified behaviour within a defined timeframe.
- Stage 4 - Notice to Quit: Where all other measures have failed or the behaviour is sufficiently serious, DataCompany will initiate eviction proceedings under DC-POL-010.
- Immediate Eviction Process: In cases involving violence, serious criminal conduct or an immediate threat to safety, DataCompany may bypass Stages 1-3 and proceed directly to legal action.

6. Support for Complainants

DataCompany recognises that being subjected to ASB can be distressing. The assigned ASB Officer will maintain regular contact with the complainant throughout the investigation, provide updates at least every 10 working days, and signpost to appropriate community support services if required. Where a complainant faces an immediate risk to their safety, DataCompany will immediately refer to the Zimbabwe Republic Police.

7. False or Malicious Complaints

DataCompany takes seriously any complaint made in bad faith or with intent to harass another tenant. Where an investigation concludes that a report was knowingly false or maliciously motivated, the complainant may themselves be subject to ASB proceedings.